

25STCP00869 25STCP00869

County: los-angeles

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Case Number: 25STCP00869 Hearing Date: September 16, 2026 Dept: 732

Kimberly Swartz v. Pacific Global Investment
Management Co.

Wednesday, September 16, 2026

CASE NUMBER: 25STCP00869

OPPOSED

Petitioner

Kimberly Swartz, as Trustee of the Third Bruce L. Safman

Amended and Restated Liv Tr Dtd 9/23/2016's Motion to Vacate Trial Date and

Confirm Arbitration Award against Respondent Pacific Global Investment

Management Co. _____

Facts: This is a

petition to confirm arbitration award. Petitioner Kimberly Swartz, as Trustee of the Third Bruce L. Safman Amended and Restated Liv Tr Dtd 9/23/2016 ("Petitioner") seeks to confirm an arbitration award against Respondent Pacific Global Investment Management Co. ("Respondent") in the amount of \$2.25 million, based on claims of breach of fiduciary duty and breach of an investment agreement.

Procedural History: Petitioner filed the petition on March 6, 2025.

Respondent filed a response on
March 19, 2025.

Petitioner filed a reply on
July 3, 2025.

No hearing date was set for the
petition, and at an August 27, 2025, a trial date was set on the petition.

On November 7, 2025, this court
denied Petitioner's ex parte application to vacate trial date and confirm
arbitration award.

Petitioner filed the present
motion to vacate trial date and confirm arbitration award on January 20, 2026.

Respondent filed an opposition
on August 3, 2026.

Petitioner filed a reply on
September 8, 2026.

Analysis

I. MOTION TO CONFIRM ARBITRATION AWARD

"Any party to an arbitration in which an
award has been made may petition the court to confirm, correct or vacate the
award. The petition shall name as respondents all parties to the arbitration
and may name as respondents any other persons bound by the arbitration award."
(Code Civ. Proc. § 1285.) A petition must include (a) the substance of or have
attached a copy of the agreement to arbitrate unless the petitioner denies the
existence of such an agreement, (b) the names of the arbitrators, and (c) a
copy of the award and the written opinion of the arbitrators, if any. (Code
Civ. Proc. § 1285.4.)

A petition to confirm an arbitration award
must be filed and served within four years of the date of the service of the
signed copy of the award on the petition, but the petition may not be filed
until at least ten days after service of signed copy of the award upon the

petitioner. (Code Civ. Proc. §§ 1288, 1288.4.) Service of a petition must be “in the manner provided in the arbitration agreement for the service of such petition and notice.” (Code Civ. Proc. § 1290.4.) If the arbitration agreement does not provide the manner for service, “[s]ervice within this State shall be made in the manner provided by law for the service of summons in an action.” (Code Civ. Proc. § 1290.4, subd. (b)(1).)

Petitioner Kimberly Swartz, as Trustee of the Third Bruce L. Safman Amended and Restated Liv Tr Dtd 9/23/2016 (“Petitioner”) seeks to vacate the trial date presently set for February 2, 2027, on her petition to confirm arbitration award against Respondent Pacific Global Investment Management Co. (“Respondent”) in the amount of \$2.25 million. Petitioner argues that no trial date is necessary because petitions to confirm arbitration awards are heard in a summary manner, and further that no grounds exist to vacate the award. (Motion at pp. 3–10.)

Petitioner is entitled to have the trial date vacated and a decision rendered on her petition. “A petition under this title shall be heard in a summary way in the manner and upon the notice provided by law for the making and hearing of motions, except that not less than 10 days’ notice of the date set for the hearing on the petition shall be given.” (Code Civ. Proc. § 1290.2.) Petitions to confirm arbitration are therefore not generally subject to trial, and the trial date is properly vacated to permit a decision on Petitioner’s motion to confirm.

Respondent in opposition argues that the present motion seeks reconsideration of this court’s November 7, 2025 order denying Petitioner’s ex parte application for the same relief. (Opposition at p. 1.) This argument is unpersuasive, as the ex parte application was not denied on the merits, but “pursuant to CRC 3.1202(c),” which rule requires an evidentiary showing of “irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte.” (CRC Rule 3.1202, subd. (c).) The prior order considered only the availability of ex parte relief, and the request made in the present motion has not been considered on the merits.

The petition includes the arbitration agreement, the name of the arbitrator, and a copy of the award, and the petition was personally served in the manner provided for summons, in conformity with Code of Civil Procedure §§ 1285.4 and 1290.4.)

Respondent in its opposition argues that the arbitration award cannot be confirmed because it is a different entity than that which had the arbitration award entered against it. (Opposition at p. 1.) The basis for the argument is not clear. The petition, agreement, award, and proposed judgment are all in accord that the award to be confirmed is against “Pacific Global Investment Management Company,” not some other entity. In its response to the petition, Respondent argues that “Pacific Global Investment Company, [which was served with the Petition on March 13, 2025], is not a proper party to this proceeding.” (Response at p. 1.) But the argument is a non sequitur, as the petition does not seek any relief against “Pacific Global Investment Company.”

In opposition to the present motion, Respondent changes tack, presenting the declaration of Catherine Henning, who states that although she was served with the petition in this matter, she is not an officer of Respondent Pacific Global Investment Management Company, but of non-Respondent Pacific Global Investment Management Co., Inc.” (Henning Decl. ¶ 2, italics added.)

But this claim is not convincing. Henning’s signature appears for Respondent on the arbitration agreement attached to the petition, the arbitrator listed her as an intended recipient of a copy of the award, and she is listed in the award as a witness who testified at the arbitration. (Petition Exhs. A, B.) The Glendale address she gives for her office is the same as the address listed for Respondent on the arbitration agreement. (Henning Decl. ¶ 2; Petition Exh. B.) Respondent offers no evidence except Henning’s unreliable testimony that its legal name is as Henning characterizes it, let alone that a “Respondent, Inc.” exists as a different entity separate from the Respondent named in the petition and which answers it here. The argument is meritless.

Respondents next arguments concern grounds for vacating the arbitration award under Code of Civil Procedure § 1286.2. Courts may vacate an arbitration award under the following circumstances:

(1)

The award was procured by corruption, fraud or other undue means.

(2)

There was corruption in any of the arbitrators.

(3)

The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator.

(4)

The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted.

(5)

The rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title.

(6)

An arbitrator making the award either: (A) failed to disclose within the time required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in Section 1281.91 but failed upon receipt of timely demand to disqualify himself or herself as required by that provision. However, this subdivision does not apply to arbitration proceedings conducted under a collective bargaining agreement between employers and employees or between their respective representatives.

(Code Civ. Proc., § 1286.2, subd. (a)(1)–(6).)

California public policy supports the use of private arbitration to resolve disputes. To promote this alternative means of dispute resolution, the law minimizes judicial intervention in the proceedings, in part, by the doctrine of arbitral finality. Thus, the general rule is that ‘an arbitrator’s decision cannot be reviewed for errors of fact or law. Both because it vindicates the intentions of the parties that the award be final, and because an arbitrator is not ordinarily constrained to decide according to the rule of law, it is the general rule that, [t]he merits of the controversy between the parties are not subject to judicial review. More specifically, courts will not review the validity of the arbitrator’s reasoning. Further, a court may not review the sufficiency of the evidence supporting an arbitrator’s award.”

(Jones v. Humanscale Corp. (2005) 130 Cal.App.4th 401, 407–408, internal citations, quotation marks, and alterations omitted.)

In both its response and opposition to the present petition, Respondent offers two grounds for vacating the arbitration award. First, they argue that the arbitrator declined to permit Respondent to conduct voir dire concerning his prior decisions in order to assess bias in the proceedings, which failure to disclose amounts to corruption and misconduct under Code of Civil procedure § 1282.6, subd. (a)(1)–(3) and (4). (Opposition at pp. 1–3; Response at pp. 1, 4.) Respondent also argues that the arbitrator's decision was legally incorrect, as the arbitrator placed the liability for investment handling decisions upon Respondent, rather than upon Petitioner, who under various provisions of the Probate Code owed a duty to supervise the investments herself. (Opposition at pp. 3–4.)

There is no basis for finding arbitrator corruption, misconduct, or grounds for disqualification. Although Respondent argues that the arbitrator failed to disclose conflicts under Code of Civil Procedure § 1286.2, subd. (a)(6), it offers no evidence that any conflict or other grounds for disqualification actually existed. Rather, Respondent presents a belated email to the arbitrator — sent after arbitration had concluded and the award served upon the parties — which sought, “[g]iven the unexpected adverse award,” disclosure of the arbitrator's prior decisions and affiliations. (Response Exh. 1.) The response to this belated request was that arbitration had concluded, the arbitrator's administrative jurisdiction had ended, and that communications to the arbitrator were limited to requests for modification, interpretation, or correction. (Response Exh. 1.) Respondent presents no evidence any conflict actually existed, that information concerning grounds for disqualification was not made available during or prior to the arbitration, or that any request for same was timely made.

Respondent's arguments concerning legal error in the award offer no grounds for denying Petitioner's request for confirmation. The contention that the arbitrator failed to take into account Petitioner's duties under the Probate Code amount only to a contention that the arbitrator committed legal error. “Because courts review neither the award for legal error nor the merits of the controversy itself, a party to an arbitration may not challenge the award for insufficiency of the evidence or flaws in the arbitrator's reasoning.” (Oaktree Capital Management, L.P. v. Bernard (2010) 182 Cal.App.4th 60, 68.)

Respondent finally argues that the failure to account for Petitioner's duties under the Probate Code violates Code of Civil Procedure § 1283.4, which states that an award "shall include a determination of all the questions submitted to the arbitrators the decision of which is necessary in order to determine the controversy." (Code Civ. Proc. § 1283.4; Response at pp. 2–3.) But this provision does not require the ultimate arbitration award to expressly address all of the arguments made by the parties to arbitration, but merely requires that any arbitration award resolve all issues pending before the arbitrator before the court enters any order confirming or vacating an award. "If an arbitration " 'award' does not qualify as an award under section 1283.4, then the [trial] court is deprived of jurisdiction to confirm or vacate it." (Ortiz v. Elmcrest Care Center, LLC (2024) 106 Cal.App.5th 594, 606.) Moreover, it "is for the arbitrators to determine which issues were actually 'necessary' to the ultimate decision." (d. at p. 606.) The arbitrator here clearly determined the award at issue to be a final resolution of all issues between the parties, stating: "This Final Award is in full settlement of all claims submitted to this arbitration." (Petition Exh. A, Final Arbitration Award, ¶ 13.) No issues remained to be determined to render the award effective, and no relief is therefore appropriate to Respondent under Code of Civil procedure § 1283.4.

Accordingly, Petitioner's motion to vacate trial date and confirm arbitration award is GRANTED.

Superior Court of California

County of Los Angeles

Department 732

KIMBERLY
SWARTZ.,

Petitioner

v.

PACIFIC GLOBAL INVESTMENT
MANAGEMENT CO.,

Respondent.

Case No.:

22STCV39985

Hearing Date: September 16, 2026

[TENTATIVE] RULING RE:

Petitioner

Kimberly Swartz, as Trustee of the Third Bruce L. Safman Amended and Restated
Liv Tr Dtd 9/23/2016's Motion to Vacate Trial Date and Confirm Arbitration
Award

Petitioner

Kimberly Swartz, as Trustee of the Third Bruce L. Safman Amended and Restated
Liv Tr Dtd 9/23/2016's Motion to Vacate Trial Date and Confirm Arbitration
Award against Respondent Pacific Global Investment Management Co. is GRANTED.

Petitioner to give notice.

Dated: September 16, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court